

subject to the provisions of any subsequent enactment, have effect accordingly :

• Provided that—

- (a) in calculating for the purposes of paragraph (k) of subsection (2) of section twenty-four of the Local Government Act, 1888, (which regulates the amount to be paid by county councils to the receiver for the metropolitan police district and charged to the Exchequer Contribution Accounts) the amount actually raised by rates from the parishes in any county, only such part thereof shall be reckoned as does not exceed the maximum amount which could have been so raised if this Act had not been passed ; and
- (b) before approving the issue of any warrants under section twenty-three of the Metropolitan Police Act, 1829, by the effect of which the annual sum to be provided for the purposes of the Metropolitan Police to which the said limit applies will be in any year for the first time increased above the rate of tenpence in the pound, the Secretary of State shall lay before Parliament a minute stating the reasons for such increase ; and, if within the next twenty days on which either House has sat after any such minute has been laid before it, an address is presented to His Majesty by either House praying that the said increase be not made, no further proceedings shall be taken in virtue of the said minute without prejudice to the presentation to Parliament of any new minute.

- 2. This Act may be cited as the Metropolitan Police Act, 1912, and shall be construed with the Metropolitan Police Acts, 1829 to 1909 ; and those Acts and this Act may be cited together as the Metropolitan Police Acts, 1829 to 1912. Short title and construction.

CHAPTER 5.

An Act to provide, during Twelve Months, for the Discipline and Regulation of the Army.

[30th April 1912.]

WHEREAS the raising or keeping of a standing army within the United Kingdom of Great Britain and Ireland in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of forces should be continued for the safety of the United Kingdom and the defence

of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of one hundred and eighty-six thousand six hundred including those to be employed at the depôts in the United Kingdom of Great Britain and Ireland for the training of recruits for service at home and abroad, but exclusive of the numbers actually serving within His Majesty's Indian possessions :

And whereas it is also judged necessary for the safety of the United Kingdom, and the defence of the possessions of this realm, that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service, under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm ; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law, in their duty, that an exact discipline be observed, and that persons belonging to the said forces who mutiny or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

44 & 45 Vict.
c. 58.

And whereas the Army Act will expire in the year one thousand nine hundred and twelve on the following days :—

- (a) In the United Kingdom, the Channel Islands, and the Isle of Man, on the thirtieth day of April ; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Short title.

1. This Act may be cited as the Army (Annual) Act, 1912.

Army Act to
be in force for
specified times.

- 2.—(1) The Army Act shall be and remain in force during the periods herein-after mentioned, and no longer, unless otherwise provided by Parliament (that is to say) :—

- (a) Within the United Kingdom, the Channel Islands, and the Isle of Man, from the thirtieth day of April one

thousand nine hundred and twelve to the thirtieth day of April one thousand nine hundred and thirteen, both inclusive; and

- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July one thousand nine hundred and twelve to the thirty-first day of July one thousand nine hundred and thirteen, both inclusive.

(2) The Army Act, while in force, shall apply to persons subject to military law, whether within or without His Majesty's dominions.

(3) A person subject to military law shall not be exempted from the provisions of the Army Act by reason only that the number of the forces for the time being in the service of His Majesty, exclusive of the marine forces, is either greater or less than the number herein-before mentioned.

3. There shall be paid to the keeper of a victualling house for the accommodation provided by him in pursuance of the Army Act the prices specified in the Schedule to this Act. Prices in respect of billeting.

AMENDMENTS OF ARMY ACT.

4. In paragraph (4) of section one hundred and thirty-seven of the Army Act, which relates to penal stoppages from ordinary pay of officers, after the words "Army Council" shall be inserted the words "or in the case of officers serving in India the Governor-General"; and as a proviso to the said paragraph there shall be added at the end thereof the following:—"Provided that where deductions have been so made from the pay of an officer serving in India the case shall, if he so require, be reported to the Secretary of State for India in Council, who may make such order thereon as he thinks fit." Amendment of section 137 of the Army Act.

5.—(1) The amount which may be deducted from the pay of a soldier in respect of a bastard child under subsection (2) of section one hundred and forty-five of the Army Act shall be increased, in the case of a non-commissioned officer who is not below the rank of sergeant, to sevenpence, and in the case of any other soldier to fourpence, and accordingly the words "in respect of a bastard child sevenpence" and "in respect of a bastard child fourpence" shall be substituted in that subsection for the words "in respect of a bastard child sixpence" and "in respect of a bastard child threepence" respectively. Amendment of section 145 of Army Act.

(2) Where an order has before the commencement of this Act been made under the said section authorising deductions to be made in respect of a bastard child, a further order may be made increasing the amount of the deductions to be made after the commencement of this Act under the former order up to the limit authorised by this section.

Amendment of
section 163 of
the Army Act
relating to
evidence.

6. At the end of subsection (1) of section one hundred and sixty-three of the Army Act (which makes certain documents evidence) the following paragraph shall be added :—

“(j) Where the proceedings are proceedings against a soldier on a charge of being a deserter or absentee without leave, and the soldier has surrendered himself into the custody of any portion of His Majesty’s forces, a certificate purporting to have been signed by the commanding officer of that portion of His Majesty’s forces and stating the fact, date, and place of such surrender shall be evidence of the matters so stated.”

Amendment of
44 & 45 Vict.
c. 58. ss. 175 (7)
and 176 (9)
(10).

7. In subsection (7) of section one hundred and seventy-five and in subsections (9) and (10) of section one hundred and seventy-six of the Army Act, which relate to persons subject to military law as officers and soldiers, the words “beyond the seas” shall be repealed wherever they occur.

Application of
Army Act to
forces raised in
India and the
Colonies.

8.—(1) For the purpose of facilitating the application of the Army Act to forces raised in India or the Colonies, the following amendments shall be made :—

(a) At the end of section one hundred and seventy-five of the Army Act (which describes the persons subject to military law as officers) the following paragraph shall be added :—

“(12) All officers of a force raised in India or a colony to which this Act is, in whole or in part, applied by the law of India or the colony, at such times and subject to such adaptations, modifications, and exceptions as may be specified in such law.”

(b) At the end of section one hundred and seventy-six of the Army Act (which describes the persons subject to military law as soldiers) the following paragraph shall be added :—

“(11) All non-commissioned officers and men belonging to a force raised in India or a colony to which this Act is, in whole or in part, applied by the law of India or the colony, at such times and subject to such adaptations, modifications, and exceptions as may be specified in such law.”

(c) In section one hundred and seventy-seven of the Army Act (which relates to persons belonging to colonial forces and subject to military law as officers or soldiers) for the words “and any such law may apply” to any such officers, non-commissioned officers, and men all or any of the provisions of this Act so far as they relate to the regular forces or any of the auxiliary forces, as the case may require, subject to such adaptations as may be necessary to make them applicable, and the provisions of this Act so applied shall, subject to such adaptations as aforesaid, be

“ construed as if such officers, non-commissioned officers, and men were included in the expression ‘ regular forces ’ or ‘ auxiliary forces,’ as the case may require,” there shall be substituted the words “ and any such law may apply, in relation to such force and to any officers, non-commissioned officers, and men thereof, all or any of the provisions of this Act, subject to such adaptations, modifications, and exceptions as may be specified in such law, and where so applied this Act shall have effect in relation to such force subject to such adaptations, modifications, and exceptions as aforesaid.”

(2) If before the commencement of this Act any law of India or a colony has been made or passed applying this Act in whole or in part to any force raised in India or the colony, such law shall have effect as if this section had been in force at the time when such law was made or passed.

SCHEDULE.

Section 3.

Accommodation to be provided.	Maximum Price.
Lodging and attendance for soldier where meals furnished.	Sixpence per night.
Breakfast as specified in Part I. of the Second Schedule to the Army Act.	Fivepence each.
Dinner as so specified - - - - -	Oneshilling and one penny each.
Supper as so specified - - - - -	Threepence each.
Where no meals furnished, lodging and attendance, and candles, vinegar, salt, and the use of fire, and the necessary utensils for dressing and eating his meat.	Sixpence per day.
Stable room and ten pounds of oats, twelve pounds of hay, and eight pounds of straw per day for each horse.	One shilling and ninepence per day.
Stable room without forage - - - - -	Sixpence per day.
Lodging and attendance for officer - - - - -	Two shillings per night.

• *Note.*—An officer shall pay for his food.